

CHAPTER 5.

An Act to extend by a further period of two years the period during which the powers of the Commissioners appointed under the Educational Endowments (Scotland) Act, 1928, as amended by the Educational Endowments (Scotland) Act, 1931, may be exercised, and to empower the Scottish Education Department to disapprove schemes submitted to them under the said Acts and to frame amended schemes, and for purposes connected therewith.

[15th February 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The period during which the powers of the Commissioners appointed under the Educational Endowments (Scotland) Act, 1928 (hereinafter referred to as the Act of 1928), may be exercised by them shall be extended by two years and accordingly in section forty of the Act of 1928, as amended by the Educational Endowments (Scotland) Act, 1931, for the words “nineteen hundred and thirty-four” there shall be substituted the words “nineteen hundred and thirty-six.”

Extension
of duration
of powers of
Commis-
sioners
under 18 &
19 Geo. 5.
c. 30.
22 & 23
Geo. 5. c. 5.

(2) The provisions of subsection (2) of section one of the Act of 1928 with respect to the remuneration of the assistant commissioners and the secretary and other officers of the Commissioners, and with respect to expenses incurred by the Commissioners, shall apply in relation to such extended period as aforesaid as they apply in relation to the period originally limited by the said section forty.

2. Section three of the Act of 1928 (which relates to directions as to schemes for reorganisation) shall be

Amendment
of s. 3 of 18
& 19 Geo. 5.
c. 30.

amended by the addition at the end of subsection (1) thereof of the following paragraph:—

“(d) to the need for continuing the provision from endowments of competitive bursaries at universities, central institutions, training colleges or other educational institutions of a similar character.”

Amendment
of s. 4 of
18 & 19
Geo. 5. c. 30.

3.—(1) Section four of the Act of 1928 shall be amended by the substitution for paragraph (a) of subsection (1) of the said section of the following paragraph:—

“(a) to any educational endowment until the expiry of twenty years from the date when the deed creating the endowment comes into operation.”

(2) The provisions of the foregoing subsection shall not apply as regards any endowment for which a draft scheme has, prior to the passing of this Act, been published in accordance with section eighteen of the Act of 1928.

Memoran-
dum to be
prefixed to
scheme.

4.—(1) Where, with a view to the re-organisation of any endowment, the Commissioners, in pursuance of section eighteen of the Act of 1928, cause to be printed the draft of a scheme, or, in pursuance of section twenty or section twenty-two of the said Act, submit for the approval of the Department a scheme, or amended scheme, they shall prefix to such draft or scheme or amended scheme a memorandum setting forth—

- (i) the reasons for which, in the view of the Commissioners, reorganisation of the endowment is necessary;
- (ii) the respects in which the draft or scheme or amended scheme involves any substantial alteration of the purposes to which the endowment is applied or applicable (including any alteration of an existing provision for competitive bursaries); and
- (iii) the reasons for any such alteration.

(2) For the purposes of the provisions of sections eighteen and twenty-one of the Act of 1928 relating to publication, a memorandum prefixed to the draft of a scheme or to a scheme or to an amended scheme in pursuance of the foregoing subsection shall be deemed to be part thereof.

5.—(1) Section twenty-one of the Act of 1928 (which relates to consideration of schemes by the Department) shall be amended by the insertion after the words “if they think fit, approve” of the words “or, after consultation with the Commissioners, disapprove”.

Power of
Department
to dis-
approve
schemes.

(2) Where the Department, in pursuance of section twenty-one of the Act of 1928 as amended by the foregoing subsection, disapprove a scheme they shall send intimation of such disapproval to the Commissioners, and thereupon the powers of the Commissioners shall cease to extend to the endowment or endowments dealt with in the scheme.

(3) Nothing in this section shall affect the powers exercisable by the Department under section forty-one of the Act of 1928, after the expiry of the powers of the Commissioners.

6. Where a scheme has after the passing of this Act been remitted with a declaration to the Commissioners and they do not within six months after the date of such remit submit an amended scheme giving effect to the declaration, the Department may themselves prepare an amended scheme to which the provisions of the Act of 1928 shall apply in like manner as if it had been submitted to the Department by the Commissioners in pursuance of section twenty of the said Act: Provided that—

Power of
Department
to amend
schemes.

- (i) where the amended scheme prepared by the Department either does not give effect to the declaration with which the original scheme was remitted or contains any material alteration of the provisions of the original scheme not required to give effect to the declaration, the Department shall not approve the amended scheme so prepared by them but shall remit it to the Commissioners with such declaration as the nature of the case seems to the Department to require; and
- (ii) where a case is submitted to the Court of Session in pursuance of section twenty-five of the said Act with regard to the amended scheme prepared by the Department, the Department shall, and the Commissioners and any others directly interested may, be parties to such case.

Citation,
construction
and com-
mencement.

7.—(1) This Act may be cited as the Educational Endowments (Scotland) Act, 1935, and the Educational Endowments (Scotland) Acts, 1928 and 1931, and this Act shall be construed as one, and may be cited together as the Educational Endowments (Scotland) Acts, 1928 to 1935.

(2) This Act shall be deemed to have had effect as from the first day of January, nineteen hundred and thirty-five.

CHAPTER 6.

An Act to make temporary provision for securing as nearly as may be that the allowances payable under Part II of the Unemployment Act, 1934, to persons who but for the operation of subsection (2) of section fifty-nine of that Act would at any time since the sixth day of January nineteen hundred and thirty-five have been entitled to transitional payments, shall not be less than the transitional payments that would have been payable to them but for the operation of the said subsection; to postpone the second appointed day for the purposes of the said Act; and for purposes connected with the matters aforesaid. [15th February 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Provision of
supple-
mentary
allowances.
24 & 25
Geo. 5. c. 29.

1.—(1) Upon any application for an allowance under Part II of the Unemployment Act, 1934 (hereinafter referred to as “the principal Act”), made in respect of the period for which this section is or is deemed to have been in operation by an applicant to whom this section applies, there shall be ascertained the amount which